

Core 1: Human Rights

1 — The Nature and Development of Human Rights☆ **The Definition of Human Rights (HR)**

HR: rights that recognise inherent value of each person, regardless of bg, location, beliefs, thoughts & appearance — **EQUAL** and **INALIENABLE**

1. **First Gen**: civil and political rights (art 1-21 UDHR)
2. **Second Gen**: economic, cultural and social rights (art 22-30 UDHR)
3. **Third Gen**: international rights - addressed by global cooperation e.g. *environ + peace rights*

☆ **Developing Recognition of HR**

ABOLITION OF SLAVERY — type of forced labour in which person is considered to be legal property of another

During **TRANSATLANTIC SLAVE TRADE**, estimated **12 million** African people shipped from Africa and America during this slave trade

Abolitionism was one of the first successful worldwide movements for a globally recognised right

— effective anti-slavery campaign led by British politician, **William Wilberforce**, exerted on British Gov to end slave trade

- **Slave Trade Act 1807 & Slave Abolition Act 1833 (UK)** — fully abolished slavery & all slaves in British Empire were freed
- US followed — all US slaves freed by 1865 — slavery abolished by **Thirteenth Amendment to Constitution of USA 1787 (US)**
- **Convention to Suppress Slave Trade & Slavery 1926** — comprehensive international convention on abolishing slavery worldwide, passed after end of WWI by **League of Nations**, precursor of UN
- At end of WWII, member states of **UN** made clear statement slavery prohibited under **Art 4 of UDHR 1948**
— However, despite anti-slavery efforts, est 45.8 million people enslaved worldwide e.g. human trafficking new recognised form

TRADE UNIONISM & LABOUR RIGHTS — org of workers created to reserve and further their rights and interests

- Trade union emerged during **Industrial Revolution** in response to appalling work conditions i.e. low wages, long hours, lack of safety
- **Trade Union Act 1871 (UK)** passed by British Parliament — *secured legal status of trade unions*
- Similarly, in Aus, harsh tactics employed by gov & employers to break down large-scale strikes — unions joined together to form **ALP**
- Trade unions worked to ensure fair wages & maintain conditions — led to min wage, paid public hols, maternity leave, worker's comp
- Labour rights finally enshrined in **art 23 & 24 of UDHR 1948**
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UNIVERSAL SUFFRAGE — right of all citizens to vote in political elections, regardless of status, gender, race or creed

- First modern countries to achieve democracy allowed only men of higher status to vote (mistrust or assumption of misunderstanding)
- Suffrage demanded for all males in **19th century** — UK, **Representation of the People Act 1918 (UK)** extended to whole male pop
- **Suffragettes** - waged long & difficult campaign for right to vote
→ **NZ** first country to grant women equal right to vote in **1893**, **Aus** in **1902**, **US** in **1920 (9th Amendment)** & **UK** in **1928**
- **Race** affected universal suffrage e.g. in America, social stigma strongly attached to certain races e.g. native Americans
→ **US** = Right to vote extended by **15th Amendment** to all adult males regardless of race
→ In **Aus**, interpretations by gov & discriminatory measures adopted by states effectively denied Indigenous people the right to vote until **1962** — **1967 constitutional referendum** gave Indigenous Australians right to be counted in Aus Census
- Right to vote recognised as **UNIVERSAL HR** in **art 21 of UDHR (1948)** but only end of Cold War (**1990**) was right universally accepted

UNIVERSAL EDUCATION — free and compulsory for all children

- By end of **WWII**, free & compulsory education spread throughout developed countries — desirable goal for all govts & basic HR
- **UN** made education **major priority for economic & social development** programs
- Right to free education included in **art 26 of UDHR (1948)**; state elementary education should be compulsory & widely available
- Despite being available in almost every country, many children for numerous reasons cannot access education i.e. **Goal 4 of Sustainable Development Goals** is to *'ensure inclusive & equitable quality education & promote lifelong learning for all'*

SELF-DETERMINATION (collective right) — right of ppl to determine how be governed or political status based on territory/national grouping

- Self-determination recognised in **Treaty of Versailles (1919)** as closely related to nationalism which was one of main causes of WWI
- Further recognised in **Atlantic Charter 1941**, the **Declaration of the UN 1942** & became key Allied war aim
- Establishment of **Charter of UN 1945 ('UN Charter')** following atrocities of WWII led to 1st universal recognition of right to SD
- **Art 1(2) of UN Charter** calls for respect for principle of self-determination — strengthened by **art 15 of UDHR (1948)** which states:
 1. Everyone has a right to a nationality
 2. No-one shall be arbitrarily deprived of their nationality nor denied right to change nationality
- **International Covenant on Economic, Social and Cultural Rights (1976)** adopted by UN includes SD as primary right, under **art 1(1)**

- Chpt13 of **UN Charter** provided international supervision for transition of 'trust' for territories to self-gov after WWII — **Timor-Leste** exerted right to SD — Timorese ppl voted for independence from Indonesia, recognised as nation state by UN in 2002
- Right to SD overshadows other HR where there has been conflict between struggle for independence & recognition of human rights

ENVIRONMENTAL RIGHTS

- Environmental rights **relate to many existing agreed rights** e.g. right to life, health & property — cannot be fully recognised without right to healthy, safe & adequate environment + relate to current & future gens
- Environmental rights recognised some international agreements e.g. **African Charter on Human & Peoples' Rights (1981)** - been adopted by 53 African states, includes right to satisfactory environ under **art 23**
- **No universal recognition of environmental rights** BUT treaties e.g. **Stockholm Declaration 1972**, **Rio Declaration 1992** & **Kyoto Protocol 1997** — all attempts by international community to deal w/ environmental problems e.g. global warming
Main problem to achieving progress = failure of all states to commit to measures to benefit global community
- **UN Climate Change Conference in Dec 2015** produced **Paris Agreement** - stabilise global warming below 2 degrees pre industrial lvls

PEACE RIGHTS — right of citizens to expect gov to do all in its power to maintain peace & work towards elimination of war

- **UN General Assembly** adopted **Declaration on Right of Peoples to Peace (1984)** — declaration is **NON-BINDING**
- Declared that promoting and implementing right to peace is **FUNDAMENTAL** obligation of states & gov policies should direct towards:
1. Eliminate threat of war | **2. Renunciate force in international relations** | **3. Settle international disputes by peaceful means** - UN Charter
- **2018 - UN Human Rights Council** issues new general comment on **International Covenant on Civil & Political Rights (1976)** — states any use or threat of use nuclear weapons would be in violation of **art 6** of 1966 covenant

☆ Formal Statements of HR

UNIVERSAL DECLARATION OF HR (UDHR) – created in response to WWII

- Formation of UN brought HR to centre stage + created obligation to promote universal respect of HR
UN Charter did not define these rights — led to UDHR; UN referred to historical docos & worldwide political & religious movements
- Adopted in **1948** — broad membership, originally signed by 48 out of 58 existing states
- Contains **30 articles** covering rights e.g. right to life, liberty, security, etc
- **SOFT law** thus officially non-binding BUT still influential – for purpose of defining 'fundamental freedoms' & HRs in UN Charter — meant max number of countries were willing to sign it rather than if it were hard-law
- **ENDURING**: inspired **200+** international treaties, conventions, decs & bill of rights — widely accepted by international community
- Has become a part of **international customary law** & foundation for 8 core HR treaties

SOFT LAW = international statements e.g. decs that don't create legal obligations on states rather create pressure to act in accordance

HARD LAW = conventions and treaties that under international law create legally binding obligations

INTERNATIONAL BILL OF RIGHTS = UDHR + ICCPR + ICESCR

INTERNATIONAL COVENANT OF CIVIL & POLITICAL RIGHTS (ICCPR)

- Came into force in **1966** & originally ratified by 35 countries
- **BINDING international treaty** creating an obligation on states to respect **civil & political rights** of individuals e.g.
 - Gender equality, right to freedom of movement, life, fair trial, vote
 - Guarantees freedom of thought, conscience, speech, religion, assembly
 - States ppl have right to marry whoever they wish, have a family & provides special protection for children under the law
- Overseen by Human Rights Committee who reports on compliance of member states & investigates violations

At beginning of 2016, ICCPR ratified by 168 states

INTERNATIONAL COVENANT ON ECONOMIC, SOCIAL & CULTURAL RIGHTS (ICESCR) — came into force in 1966

- Created obligation on states to work towards granting **economic, social and cultural rights** to individuals, includes:
 - Labour rights e.g. right to just conditions, fair work wages, join trade unions
 - Created rights to adequate standard of living e.g. right to adequate food, clothing, health care
 - Right to education is guaranteed
- Overseen by UN Committee on Economic, Social and Cultural Rights

Beginning of 2015, ICESCR ratified by 164 states

2 — Promoting and Enforcing Human Rights

☆ IN INTERNATIONAL COMMUNITY: State Sovereignty

STATEHOOD — state recognised as having permanent pop, defined territory, gov & capacity to enter into international relations

- Must also be recognised as a state by other states so it can exercise full political & legal capacity
- Being a UN member is clearest mark of statehood

IMPLICATIONS OF STATEHOOD ON HR

- People unable to claim protections under international HR regime if live in an unrecognised state
E.g. 2009 - **Taiwanese Parliament** ratified **ICCPR** & **ICESCR** into domestic law BUT as unrecognised state w/o UN membership, Taiwanese citizens cannot access international HR framework including right to complain to HR

STATE SOVEREIGNTY = authority of state to govern itself e.g. create & implement laws — independence from external interference in affairs

- Central to international law & capacity of world to enforce states' compliance with recognised HR — THUS, **no foreign state can interfere in another state's domestic juris. unless it has consent from that state**

IMPLICATIONS ON HR

- Not all govs equally accept idea that their own people have rights
- THUS, some countries w/o democratic processes may rely on sovereignty to **justify mistreatment** of citizens OR commit human rights abuses with **little to no avenue for citizens to respond** OR can be used as **shield from external interference**

BUT, through signing international treaties e.g. **UN Charter** create legal obligations — **consensual** & thus, **DO NOT INFRINGE ON SOVEREIGNTY**

- Put responsibility on sovereign state to uphold its commitments or face agreed consequences e.g. ICCPR & ICESCR
- Further enables other states and own people to submit complaints

☆ INTERNATIONAL COMMUNITY: Roles of ...

UNITED NATIONS — vast org consisting of **193** member states

- Responsibility for almost every aspect of international affairs
- Avenue through which much of world's international development & assistance & majority of international cooperation takes place

FIVE Principal Organs Under UN Charter

UN General Assembly (UNGA)	Consists of reps from all member states — main forum for international discussions & recommendations; relating to HR Numerous committees, programs & funds attached to General Assembly e.g. UN HR Council reports directly here ★ UNHRC : UN forum of member states responsible for overseeing & making recos on HR
UN Security Council	Charged with preservation of international peace & security • Exercises power thru legally binding resolutions & authorise military actions, sanctions or peacekeeping ops • Argued to have power to intervene most serious of HR abuses by states Five permanent member who have power to veto decisions i.e. US, UK, China, Russia, France
Economic & Social Council	54 rotating members meeting annually to assist in promoting international economic & social co-op & development • Acts as central forum for discussion of economic, social & humanitarian issues
UN Secretariat	Main admin body of UN — provides various info, studies tasks & facilities needed by UN • Includes UN departments & offices e.g. Office of High Commissioner for Human Rights
International Court of Justice	Primary judicial organ of UN • Has jurisdiction, under UN Charter, to settle international disputes submitted to it by member states • Produces advisory opinions on matters of international law submitted by international organs & UNGA

Office of UN High Commissioner of HR (OHCHR)

- **Admin** agency under UN Secretariat that promotes & protects HRs contained in UDHR & international law

PURPOSES: advancing universal ratification of HR treaties, providing support & info for other UN HR bodies & treaty-monitoring bodies

UN Human Rights Council

- Intergov body under UNGA — aims to address HR violations worldwide & make recos, working closely with OHCHR to perform duties
- Adopted specific measures that aim to increase power to address HR abuses e.g. complaints procedure, compulsory periodic reviews of HR situations, an Advisory Committee to provide expertise & advice + recommend issues for council to consider

Core 2: Crime

1 - NATURE OF CRIME★ **MEANING OF CRIME**

CRIME: act/omission against community punishable by state e.g. court & Cwlth bodies — attack on moral & ethical standard of society, thus responsibility of all to punish those found guilty.

★ **ELEMENTS OF CRIME**

ACTUS REUS '*guilty act*': accused physically carried out crime — must be voluntary but may include **omission/failure to act** (*Criminal Neg.*)

MENS REA '*guilty mind*': intended (to some degree) to commit crime — **understood** what was happening w/ **conscious & willing mind**

Levels of Mens Rea

- **Intention:** clear, malicious or wilful intention to commit crime. → most difficult level for Pros. to prove.
- **Recklessness:** an intermediate level of intent
→ accused aware actions lead to crime committed but chose to take risk - acting w/o caring abt consequences of actions.
→ Pros. attempt to **prove risk was obvious to a reasonable person** & accused knew risk — didn't care abt consequences.
- **Criminal Negligence:** accused fails to foresee risk & allows avoidable danger, resulting in harm accused had **duty to protect**

★ **STRICT LIABILITY OFFENCES**

Strict Liability Offences: offences where Pros. only needs to prove **actus reus** — restricted to minor off. as easier to prove e.g. traffic off.
→ Admin advantages e.g. assists legal system in coping w/ volume + puts greater onus on society to comply w/ particular law

★ **CAUSATION**

Causation: link b/w behaviour of accused & result — behaviour of accused actually caused criminal act alleged – relevant in proving **actus reus**.

★ **CATEGORIES OF CRIME****OFFENCES AGAINST PERSONS** - involves some form of harm or injury to an individual

- **HOMICIDE:** unlawful killing of another person; deliberate OR accidental — **causation** **MUST** be established b/w act of accused & death
- **MURDER:** deliberate killing of a person — most serious & is punishable by life imprisonment.
To prove in court killing was murder, **Pros. must prove at least one:**
 - Accused intended to deliberately kill victim OR set out to inflict serious bodily harm which resulted in death.
 - Act was done w/ reckless indifference to another human life - accused did not care act might end another's life.
 - Act was done while committing or attempting to commit a serious crime punishable by life or 25 years' imprisonment.
- **MANSLAUGHTER:** killing of person considerable to be less intentional to murder — **reduced lvl of intent** & punishable by up to 25 yrs

1. **Voluntary:** kills w/ intent BUT **mitigating circumstances** e.g. age, emotional disturbances, defence of prov. → reduces culpability.
2. **Involuntary:** killing person because accused acted in a reckless or negligent way w/o intention to kill.
3. **Constructive Manslaughter:** killing person while accused carrying out another dangerous/unlawful act

INFANTICIDE: special category of manslaughter — applies to death of baby <12 months at hands of their mother.

Crimes Act 1900 (NSW) requires court to take into account state of mind of mother at time she commits crime.

DANGEROUS DRIVING CAUSING DEATH: person drives unsafe & recklessly e.g. driving under influence of drugs & alcohol or at excessive speed.

ASSAULT (*most common*): criminal offence involving infliction of physical force or threat of physical force.

Common Assault	Assault where there is no physical harm to person assaulted i.e. threatening to assault.
Physical Abuse	Direct act which force applied to another person's body unlawfully & w/o their consent — punishable up to 5 yrs • Threat to cause physical harm causes victim to fear violence e.g. threatening phone calls, text messages
Sexual Offences	Sexual Assault: assault where someone is forced into sexual intercourse against will & consent ('rape')

- International terrorism e.g. cyber terrorism
- Creation & trafficking of child pornography
- Transnational trade in illegal substances, including via international air, shipping, postal networks

CAUSES of transnational crimes:

- Diff in socioeconomic conditions b/w countries
- Desire for prohibited goods/services where suppliers are based in one country & consumers in another
- Differences in political & ideological viewpoints

Transnational crimes usually prosecuted under the law of one or another country's domestic jurisdiction

- Due to difficulties of trans-border detection & enforcement of criminal laws, many laws relating to such crimes now underpinned by cooperation agreements b/w pair or group of countries affected by crimes

★ **DEALING WITH INTERNATIONAL CRIMES**

INTERNATIONAL & DOMESTIC MEASURES

ICC — independent international court established by Rome Statute to prosecute & try international crimes of the most serious nature

- Requires referral from the UN Security Council to prosecute certain individuals outside the court's normal jurisdiction
- Jurisdiction over 4 broad categories of international crime: genocide, crimes against humanity, crimes of aggression & war crimes

ICC is a last resort – can only prosecute a case when state courts cannot or are willing to do so

ICC can only exercise jurisdiction when:

- Accused is a national of a member state of treaty alleged crime occurred in territory of member state
- Situation is referred to the ICC by the UN Security Council

Can impose sentence of imprisonment up to life & served in a state prison designated by court — can order fine or forfeiture of assets

DOMESTIC MEASURES

- Limited jurisdiction — Aus law enforcement cannot operate in foreign country; Aus legal system cannot respond unless cooperation

**CRIMES AGAINST ITL
COMMUNITY**

- Aus had signed & ratified the Rome Statute in 2002
- ICC made to complement rather than exclude existing state criminal justice systems & only prosecute when state courts cannot or are willing not to do so — Aus has primary juris. to investigate & prosecute such crimes if occur in Aus territory or involve Aus citizens

TRANSNATIONAL CRIMES

AUSTRALIAN FEDERAL POLICE

- Engaged in various international activities e.g. posts in more than 25 countries — building, monitoring and peacekeeping + specialist training for itl law enforcement agencies to help prevent transnational crimes
- Itl operations e.g. child protection, counter-terrorism operations, stopping human trafficking and drug operations.

CWLTH ATTORNEY-GENERAL'S DEPARTMENT

- Reports and provides valuable advice on Australia's compliance with its international obligations
- Oversees the operation of legislation relating to transnational crimes + advice on its implementation
- Provides general information to the public and to parliament on the status of Australia's efforts against transnational crime.

AUS CRIMINAL INTELLIGENCE COMMISSION

- **ROLE:** Investigates matters of national concern & delivers specialist law enforcement capabilities to assist in investigating and analysing intelligence concerning national and transnational crimes e.g. money laundering & tax fraud, identity crime, cybercrime

AUS BORDER FORCE

- National agency that looks after the security and integrity of Australian borders — prevent illegal transfer of goods or people

INTERNATIONAL MEASURES

Many international measures aimed at tackling international crime — can be generally divided into the following categories:

- Cooperation among governments thru international treaties & international orgs targeted at specific types of international crime
- International courts and tribunals to deal with enforcement of international law
- Cooperation and intelligence sharing between national and sub-national agencies to tackle problems of trans-border crime.

CRIMES AGAINST INTERNATIONAL COMMUNITY

- The nature of crimes is recognised and universally agreed by the international community to condemn them.

COURTS & TRIBUNALS

- in the 1990s, various ad hoc international tribunals were also established in order to prosecute atrocities relating to particular events
- E.g.
- International Criminal Tribunal for the former Yugoslavia (ICTY) was established in 1993 by the UN Security Council to investigate and prosecute individuals for war crimes, crimes against humanity and genocide committed during the Yugoslav conflict in the 1990s.
 - International Criminal Tribunal for Rwanda (ICTR) was established in 1994, also as a Security Council ad hoc court to prosecute those most responsible for crimes committed during the Rwandan genocide

Hybrid courts distinct from ad hoc tribunals — est. by agreement b/w gov in question & UN, whereas ad hoc tribunals imposed upon gov

EXTRADITION TREATIES

Process where one country surrenders suspect/convicted criminal to another country to face criminal charges or sentencing e.g. if a person commits murder in another country and flees to Australia before they are caught, they might be extradited back to the original country.

Criteria for extradition to be granted

- Must be determined that accused has case to answer on evidence, will receive fair trial in state to which they are being returned & offence is a crime in both Australia and the target country

Ensures offenders cannot simply flee jurisdiction where an offence was committed in order to escape prosecution for their crime.

TRANSNATIONAL CRIMES

INTERPOL (International Criminal Police Organisation)

- World's largest international police org established 1923 to facilitate collab among intelligence agencies around the world
- Main aim is to improve cooperation between police around world & prevent & combat international crime
- Role in investigating & providing advice to states' law enforcement agencies on transnational crimes

PACIFIC TRANSNATIONAL CRIME NETWORK (PTCN) — 2002 to increase response in regional transnational crimes

- Created regional network of transnational crime units in Pacific states w/ focus on combating cross-border criminal activity
- Manages, coordinates and enhances law enforcement intelligence and data across the region
- Provides technical assistance, training and resource sharing & helps strengthen the rule of law in Pacific countries

LIMITATIONS

TRANSNATIONAL CRIMES

- Some states lack skills, training & resources to combat transnational crimes + political unrest or high levels of state corruption

Main areas for efforts against transnational crimes to address include:

- Extent of international cooperation between states — provision of adequate resources & effectiveness of coordination amongst international agencies e.g. exchange of info
- Level of compliance amongst weaker or poorer states — states where rule of law may be weak become targets of organised crime

CRIMES AGAINST INTERNATIONAL COMMUNITY

- Most significant development of combatting international crime is ICC; follows numerous ad hoc tribunals set to cope with crimes committed in specific situations e.g. Rwanda & Yugoslavia
- Ad hoc tribunals usually reactive & resource inefficient (not very accessible)
- Permanent court such as ICC symbolically powerful — sends message to leaders of other criminals & threat of later prosecution acts as deterrent
 - offers enormous support to victims of crimes by attempting to bring justice to those responsible for these atrocities

HOWEVER

- Atrocities are not immediately dealt with — too slow to stop atrocities before or even during
- No international force or police that can capture offenders
 - E.g. charges by ICC were not laid against President al-Bashir until 2008, five years AFTER his committed atrocities against people of Sudan
- Highly expensive & resource-intensive — not very likely for court to prosecute everyone involved & thus focus on prosecuting the 'main players' as outlined in Rome Statute
- ICC lacks world's most important & influential countries such as USA & China, hinder their effectiveness as a global organisation — many objecting states claim that joining ICC would violate their state sovereignty HOWEVER ICC still has jurisdiction over any individuals from non-member states who commit crimes against or in territory of member state

THUS ICC has potential to make significant difference in preventing further atrocities & bring justice

HOWEVER, must strengthen rule of law & combat other conditions that result in conflict to become more resource-efficient than inefficiencies

Option: Family

	BODY 1	BODY 2	BODY 3	BODY 4
Role of law in <i>encouraging cooperation & resolving conflict</i> in regard to family	SSR RIGHT TO FAMILY LAW <i>Limited effective</i> Thru reform, law encourages coop with newly accepted SSR as grant right to fam life BUT greater protections still required	FAMILY & COMMUNITY SERVICES <i>Limited effective</i> Under Resourced thus difficult to effectively encourage coop (not proactive) thus fails to resolve conflict	OUT-OF-HOME CARE & FORCED ADOPTION <i>Moderate effective</i> Encourages coop b/w fam, support services & children in danger BUT law remains neglectful in coop to maintain child's long term safety	ALTRUISTIC SURROGACY <i>Moderately Effective</i> Encourages coop b/w families requiring surrogacy & surrogate mothers — ensures resolution of conflict involving legal parentage, etc
Issues of <i>compliance & non-compliance</i>	CHANGING DEFINITION OF DV <i>Mostly ineffective</i> Thru reform , encourages compliance & thus hinders prevalence of DV cases HOWEVER, ineffective in proactively preventing repeated cases due to lack of enforcement	CHILD SUPPORT <i>Moderate Effective</i> Encourages compliance thru facilitating financial wellbeing of children & single parents BUT lack of enforcement for parents who do not comply with child support obligations	COMMERCIAL SURROGACY <i>Ineffective</i> Lack of enforcement thus does not respond to non-compliance BUT attempted at encouraging compliance	ALTRUISTIC SURROGACY <i>Moderately Effective</i> Through reform that creates more supportive surrogacy arrangements , encourages compliance with the law as less cases are non-complying & relying on commercial surrogacy (criminalised)
<i>Changes</i> to family law as a response to <i>changing values</i> in community	LEGAL RECOGNITION OF SSC <i>Mostly effective</i> Addresses changing value to recognise equal rights for SSC — enables for effective reform to provide entitlements	SSM <i>Limited effective</i> Addresses society's growing acceptance of SSC & thus equal rights — law reform effectively addressed need for marriage equality	CHANGING DEFINITION OF DV <i>Great extent ineffective</i> Fails respond to need for further protections for families experiencing violence — lack of enforcement	ARTIFICIAL INSEMINATION <i>Moderately effective</i> Responds to changing societal value — need for better relationships between sperm donors and donor children
Role of <i>law reform</i> in achieving <i>just outcomes</i> for family members & society	LEGAL RECOGNITION OF SSC <i>Mostly effective</i> Reformed law to legally recognise SSC , achieving just outcomes for SS fam members & society	SSM <i>Effective</i> Through successful law reform, legalised SSM thus grants equal rights for SS fam members & society	APPLICATION OF CNPR <i>Ineffective</i> Law reform fails to prioritise child's best interest , failing to achieve just outcomes as children are subjected to further harm	BIRTH TECH: PARENTAGE PRESUMPTION <i>Moderately effective</i> Lacks clarity in some areas but in most cases, upholds rights & responsibilities of parents & acts in accordance with child's best interest
Effectiveness of <i>legal and non-legal</i> response in achieving <i>just outcomes</i> for family members	SSM	SSC - NON LEGAL	FACs	CARE & PROTECTION - NON LEGAL

CHANGING NATURE OF PARENTAL RESPONSIBILITY (CNPR)

APPLICATION OF CNPR

Moderately effective

Encourages shared parental responsibility + **improved DRM** BUT **fails to prioritise child's best interest** in some cases due to **lack of clarity**

Family Law Amendment (Shared Parental Responsibility) Act 2006 (Cth) FLASPR

- Encourage **SPR** + introduce mandatory fam DR for separating parents before accessing Fam Court.
→ Court must grant equal time for both, except when judge deems case not in **'child's best interests'**
- HOWEVER, inconsistencies in interpretation** as law not provide guidelines as what deems case an exception

'Screening for family violence in family mediation' (Family Matters - 2016)

- Shared parenting provisions led to increased n.o of children spending substantial & significant time with each parent + mandatory family dispute resolution led to **25% decrease in court filings in parenting matters**.

Australian Law Reform Commission (2019) Report

- Found provisions in **Family Law Act 1975 (Cth)** with regards to parental responsibility being **misinterpreted**
→ Many interpreting the law as both parents having to see the child for equal amounts of time
- Unrepresented parties believed obligated to agree to equal time, **entering agreements could not uphold**.
→ Arrangements **not in best interests of child**, subjecting child to **greater risk of ongoing abuse**.

CHANGING DEFINITION OF DV

Great extent ineffective

Fails to **provide protections** for families experiencing violence thus failing to achieve justice

Family Law Amendment (Family Violence and other Measures Act) 2011 (Cth)

- Expanded definition of family violence to include a range of controlling behaviours + criminalised various breaches of **Family Law Act 1975 (Cth)** — **broaden opportunities available for victims to receive protection**.

'Children and Family Law: 'How can you share parenting with an abusive partner'' (The Guardian - 2020).

- Shortcoming** as once fam law order is made, impossible for children to resist the decision
→ **Child's say is disregarded**, having significant toll on their mental health.

ALRC review found **one in five parents** reported safety concerns due to court-ordered contact w/ other violent parent

- Provides **some protection** only, **failing to prioritise best interests of child** in most instances
- Seen in **85%** of families going through law system report histories of family violence
→ Only **3%** of these cases result in no contact, around **79%** w/ orders of shared responsibility.

Lack of enforcement dismisses domestic & child abuse allegations in order to make shared parenting possible

CHILD SUPPORT (CS)

Mostly Effective

Facilitates financial wellbeing of children & single parents in most cases, **HOWEVER**, often **fails to address issue of non-custodial parents who fail to fulfil child support obligations**

Child Support (Registration and Collection) Act 1988 (Cwlth) + Child Support (Assessment) Act 1989 (Cwlth)

- Established Child Support Agency (CSA) to administer CS Scheme & assess amounts of child support payable.

ALRC's inquiry into fam violence revealed single parents reduce contact & increase safety once CSA collected CS

- Aims to have parents fulfilling parental responsibility BUT **lack of enforcement** — still parents who avoid child support by paying late or inconsistently & thus **failing to meet their parental obligations**.

'Tighten tax system to target child support avoidance: single parents' (SMH - 2022)

- Anti-Poverty Week report (2022)** est up to **\$2 billion** in outstanding CS debt, directly affecting **1 mill children**

National Council of Single Mothers and their Children

- Non-custodial parents drop out of tax system avoid paying CS — **financial coercion on custodial parents**
- Recommended for law reform to recognise persistent underpayment & non-pay rent of CS as **relevant factors in determining existence of abuse** — more resources invested to target tax min and avoidance

'Travel bands net millions in child support' (SBS News - 2019)

- Gov implemented overseas travel ban through the **Departure Prohibition Order** to encourage repayment of CS debt — **\$21 million** in outstanding payments was collected; in retrospect, **little impact on issue**

NON-LEGAL RESPONSES

Effective

Raises awareness on arising issues of CNPR

Relationships Australia: implemented methods to assist separating families thru negotiating parenting agreements

- Avoid onerous Fam Court** & focuses on compromise, less stressful & adversarial

FAM COURT resource-intensive

- Simic v Norton:** couple spent **\$860 000** in custody, child support & property hearing in Fam Court — diminished financial capacity of both parents to prove for child, undermining child's rights

'The kids are not alright' (SMH - 2011)

- Lack of stability** for young children provided by shared custody arrangements = child's psychological harm.

National Council of Single Mothers and their Children lobbies gov, provides info to **ALRC**, puts forward their opinion in the media and provides required legal advice & counselling to those involved in shared parental situations.

BIRTH TECHNOLOGIES (BT advancing too fast for effective law reform)

PARENTAGE PRESUMPTION

Great extent effective

Upholds **rights & responsibilities** of parents + acts **in accordance with child's best interest** BUT **lacks clarity in some areas**

Status of the Children Act 1996 (NSW)

- Created notion '**presumption of paternity**' is automatic & irrefutable for married & de facto couples.

Demonstrated in **B v J (1996)**

- Father, not bio related to child, still required to pay for child's maintenance under '**presumption of paternity**'
- Held parents using BT accountable for legal responsibilities, decisions made in accordance **UNCROC 1989**.

Miscellaneous Acts Amendment (Same-Sex Relationship) Act 2008 (NSW)

- Created a parentage presumption in favour of the birth mother's female partner for **same sex couples**.

HOWEVER, **lack of clarity** in some areas of family law has resulted in compromise of the child's best interests.

Masson v Parsons & Ors (2019) (exemplifies ambiguity of legal rights & responsibilities)

- HC applied Cwlth law, determining sperm donor's ongoing role in child's life deems them legal parent
- Thus, sperm **donors may deter from connecting with child** & recipients may deter from allowing donors any child contact, hindering child from forming a relationship w/ person of significance

ARTIFICIAL INSEMINATION

Moderately effective

Upholds **child's best interest** in AI cases thru disclosing info about sperm donors, however, **lack of enforcement & accessibility** in some cases

Assisted Reproductive Treatment (ART) Act 2007

- Introduced **mandatory central register** for sperm donors effective **2010** in response to lack of accessibility to such info that hindered ability to navigate through medical and social dilemmas

ART 2007 is **not retrospective** — children **born prior to 2010 do not have access** to information about sperm donors

'Sperm donor may want anonymity, but there are real kids out there' (The Guardian - 2015)

- 60 000 donor-conceived children** in Australia do not have access to information about their genetic history and identity — subjected to experiencing ongoing mental health issues.

'More women are choosing to have children alone, and using private sperm donors to do it' (ABC News - 2023)

- Many women opted for use of private sperm donors as inexpensive alternative to clinic, *approx \$6000*
→ **THUS**, donor information is **not registered** into the mandatory register — **lack of enforcement**
- Dr Hammarberg**: priv sperm donors results in **lack of formalised consent**
— Impedes donor-conceived children from forming identity & result in future legal complications

ALTRUISTIC SURROGACY

Moderately Effective

Effectively addresses issues of altruistic surrogacy BUT some **legal inconsistencies** arise

Family Law Act 1975 (Cth) — response to growing use of surrogacy

- Enabled commissioning parents to apply to NSW Supreme Court for an order to **transfer legal parentage**.

Re Michael: Surrogacy Arrangement (2009) FAMCA 691

- Transfer of legal parentage is **lengthy process** = applying to Supreme Court under **Adoption Act 2000 (NSW)**.

Surrogacy Act 2010 (NSW)

- System of parenting orders, made transfer of legal parentage **efficient & less resource intensive** process — legal acceptance of growing use of BT, upholds **right to found a family** stated under **UDHR art 16**.

'Surrogacy is on increase in Aus, but agreements can be legally, medically & emotionally complex' (ABC - 2022)

- Surrogacy Australia** found that approx **100 Australian women act as surrogate** mothers each year.
- Legal in all Aus juris — surrogate mothers **not being fully compensated** & are worse off financially

COMMERCIAL SURROGACY

Great extent ineffective

Lack of enforcement.

Surrogacy Act 2010 (NSW)

- Prohibits use of CS domestic & international, penalties of up to 2 yrs jail & \$100 000+ fines

'Surrogacy booming in Australia despite legal issues' (ABC News - 2017)

- Despite legal penalties, no prosecutions for use of commercial surrogacy in NSW over past 10 years

Option: Workplace

THEMES & CHALLENGES

	BODY 1	BODY 2	BODY 3	BODY 4
Role of the law in encouraging cooperation & resolving conflict in the workplace	WORK HEALTH & SAFETY (WHS) Moderately effective Law imposes heavy penalties thus encouraging cooperation HOWEVER a lack of enforcement results in ineffective resolving of conflict in most cases	RACIAL DISCRIMINATION To a limited extent effective Penalties encourages cooperation, however, underreporting results in ineffective resolution of conflict as racial discrimination is still pervading issue	GENDER DISCRIMINATION Limited effective Penalties to encourage cooperation + reform BUT fails to address underlying bias thus ineffective in resolving conflict	SEXUAL HARASSMENT Limited effective Fails to resolve conflict as law does not proactively encourage cooperation due to lack of legal clarity in cases of SH & termination
Issues of compliance and non-compliance	RACIAL DISCRIMINATION Moderately effective Through penalties , encourages compliance however fails to respond to non-compliance due to a lack of enforcement in some cases	UNFAIR TERMINATION — NEG Ineffective Ineffectively encourages compliance & respond to non-compliance as lack of legal clarity results in offenders not being held accountable thru adequate punishment e.g. termination	DISABILITY DISCRIMINATION Mostly ineffective Encourages compliance thru imposing a duty of care & effectively responds in most cases BUT remains pervading issue	SEXUAL HARASSMENT Limited effective Fails to encourage compliance and thus respond to non-compliance due to lack of legal clarity & hence, SH remains ongoing issue in WP
Laws relating to the workplace as a reflection of changing values & ethical standards	PATERNITY LEAVE Limited effective Reform ineffectively responds to changing values & ethical standards as disincentivises fathers from taking paternity leave in most cases, widening gender pay gap	DOMESTIC VIOLENCE LEAVE Effective Responds to changing values & ethical standards of providing SH victims with further support thru law reform	WORKER'S COMPENSATION Highly ineffective Fails to respond to changing values as removes support from vulnerable workers , placing them into further vulnerability (goes against ethical standards)	GENDER DISCRIMINATION Limited effective Fails to address underlying bias which is against changing community values allowing gender discrim to become an ongoing issue
Role of law reform in recognising rights & enforcing responsibilities in the workplace		WORKERS' COMPENSATION Law reform fails to recognise & enforce responsibility of employers to provide supportive environment as transfers responsibility of financial burden of workplace injuries from employers to vulnerable employees	UNFAIR TERMINATION — POS Law reform further strengthened protections of unfair termination cases thus effectively recognising & enforcing employers of their responsibility of creating a fair workplace	
Effectiveness of legal and non-legal responses in achieving justice in the workplace				

DISCRIMINATION

<u>RACIAL DISCRIMINATION</u> <i>Moderately effective</i> Law aims at protecting employees from racial discrim. BUT non-compliance remains significant due to underreporting	<u>Racial Discrimination Act 1975 (Cth) and Fair Work Act 2009 (Cth)</u> (FWA) prohibit discrimination on basis of race — impose penalties for businesses that do not comply <u>Fair Work Ombudsman v Yenida (2018)</u> — <i>breached racial discrim provisions of FWA</i> as Malaysian employees, despite working longer hours, underpaid compared to Aus employees — imposed \$200 000 fine HOWEVER, most workplace discrimination goes unreported — <u>Fair Work Ombudsman Report (2019)</u> - Migrant workers not report underpayment — fear of investigation by Depart of Immigration despite underpayment = significant issue; >70% of cases involve underpayment. <u>'Australian bosses are racist when it's time to hire' (SMH - 2009)</u> - Chinese or Arabic names less likely to receive interview than Anglo-Celtic names, even if CVS identical → Difficult to prove discrim as employers not required to provide justification for decisions NL: <u>AHRC</u> developed sources to help employers address racial discrim e.g. guides on unconscious bias, etc <u>'Racism. It stops with me'</u> — raises awareness of racial discrim & promotes non-discrim workplaces
<u>GENDER DISCRIMINATION</u> <i>Limited effective</i> Law addresses gender discrim. BUT underlying & unconscious bias still pervades e.g. gender pay gap & underrepresentation	<u>Sex Discrimination Act 1977 (NSW)</u> — prohibits discrimination on basis of sex, marital status and pregnancy. - Penalties for non-compliance, <u>Convention on Elimination of All Forms of Discrim Against Women (CEDAW)</u> <u>Workplace Gender Equality Act 2012 (Cth)</u> — employers w/ 100+ employees report gender equality = accountability <u>'Gender Pay Gap (GPG) Statistics' by Workplace Gender Equality Agency (2022)</u> — GPG declined by 13.3%. - Positive progression BUT % TOO HIGH — Aus = 43 out of 146 countries achieving gender parity <u>'Australian women are among the best educated in the world. Why are workplaces failing us?' (SMH - 2023)</u> <u>World Economic Forum</u> — Aus women fell 13th to 70th for workplace participation & achievement. → Underrep of women in SNR positions — only 6% of women held CEO positions NL: <u>Australian Council of Trade Unions (ACTU)</u> advocated for reduced rates of gender discrim in workforce E.g. <u>Cwlth Bank set goal of achieving 47%-50% gender equality in Exec Manager & above roles by 2025.</u>
<u>DISABILITY DISCRIMINATION</u> <i>Mostly ineffective</i> Existence of statutory & comm law framework to protect rights BUT underlying & unconscious bias still pervades	<u>Disability Discrimination Act 1992 (Cth)</u> - Illegal to discrim on grounds of disability — employers duty to make reasonable adjustments <u>Huntley v State of NSW (2015)</u> — former employee of Corrective Services awarded \$170 000 in comp after FCC found she unlawfully discriminated; failed to 'make reasonable adjustments' to suit work cond. to disability <u>'How Australia can get more people with disability into the workplace' (SMH - 2023)</u> - Lower employment lvls = Aus w/ disability living in poverty at highest rates in OECD AHRC reported disability discrim receives highest number of discrim complaints — lodged at 37% NL: <u>Australian Network on Disability (AND)</u> — promote inclusion of people with disabilities in workplace. → Provides training, resources & support to employers to help them create a more inclusive workplace
<u>PREGNANCY-RELATED DISCRIMINATION</u> <i>Limited effective</i> Protections provided for preg women BUT law places ONUS on women to prove mistreatment due to preg	<u>FWA 2009 (Cth)</u> prohibits preg-related discrim where employer's adverse actions due to preg - Despite protections ALTHOUGH lack of enforcement — remains SIGNIFICANT issue <u>USYD Study (2015)</u> — 50% of women reported experiencing discrim during preg, maternity leave or on return HOWEVER, only 4% of matters involving discrim against preg women in workplace reported to gov <u>Australian Journal of Labour Law (2015)</u> — of matters reported, most cases dismissed - Of 10 preg-related discrim cases, none won case - employer claimed redundancy reason for dismissal <u>'Discrimination law fails pregnant women who lose their jobs' (The Conversation - 2016)</u>

NL: NSW Parliament's Law & Justice Committee 2020 Review of Workers' Compensation Scheme

- Found **significant shortcomings** in NSW workers' comp scheme e.g. NSW gov-owned insurer, **iCare**, mismanaged fund due to calc errors — **53 000** employers underpaid total **\$38 mill from 2012-19**
→ Employers & employees suffered detriments, filing to provide safe & supportive WP

TERMINATION

UNFAIR TERMINATION — POSITIVE

Effective

Law reform strengthened protections for employees — provides adequate support for those unfairly dismissed

Fair Work Act 2009 (Cth) replaced previous **Workplace Relations Act 1996 (Cth)**

- Introduce n.o of reforms provide greater protection for workers as promotes better working conds
Most significant change was **removal of exemptions for unfair dismissal laws**

Workplace Relations Amendment (Work Choices) Act 2005 (Cth)

- Removed exemptions for unfair dismissal laws to businesses w/ 100 employees or less
- **FWA (2009)** strengthened protections for employees thru remedies e.g. reinstatement & monetary comp

Avril Chapman v Tassal Group Limited T/A Tassal Operations Pty Ltd (2017) — sacked for **sickie** on bday

- Fair Work Commission concluded valid reason for dismissal, HOWEVER, dismissal found **'harsh'**
→ Company ordered to pay **\$8229** in compensation as she was not going to be reinstated.

USYD Study (2008)

- Found **Workplace Relations Act 1996 (Cth)** led to job insecurity, worse employment conds & affected ability of workers to participate in fam & community life — intro of **FWA (2009)** effective response

NL: Aus Council of Trade Unions (ACTU) played crucial role in **'Your Rights At Work'** campaign against **WorkChoices** — participation from 170 000 people online & 546 000 protesting

UNFAIR TERMINATION (UT) — NEGATIVE

Ineffective

Despite reform, law **fails to provide consistent agenda** for employees to form decision in regards to an employer's termination

Fair Work Act 2009 (Cth)

- Employee's termination considered unfair if conducted in **'harsh, unjust or unreasonable'** manner
→ Provides some protection for employee & promotes fair treatment in WP, interpretation of **'harsh, unjust & unreasonable'** in some instances failed to reflect the moral ineffectiveness

Australian Human Rights Commission: Sexual Harassment Inquiry (2019) — NL

- Revealed employer's attempt to create safer workplaces curtailed by unfair dismissal laws, discourage termination of perpetrators — creates unsafe workplace for all employees (seen in cases below)

'Workplace sexual harassment aided by unfair dismissal laws' (SMH - 2019)

- Unfair dismissal laws protecting employees guilty of sexual harassment.
→ **FWC** reinstated employees engaged in serious misconduct as termination deemed unjust
- **Inconsistent approach** provides employers w/ little confidence in decision to remove employee

B, C and D v Australian Postal Corporation (2013)

- Majority of **Full Bench of FWC** found accessing, sending or receiving & storing pornographic materials by employee on work email system does not invariably warrant termination of employment.
→ **Inconsistent approach to what validates UT** as perpetrators not guaranteed termination

PREGNANCY DISCRIMINATION

Highly ineffective

In most cases, law fails to protect rights of employees, esp preg

Fair Work Act 2009 (Cth) & **Sex Discrimination Act 1984 (Cth)** — prohibits discrimination related to pregnancy

- Protect women from termination where employer's motives for actions due to worker's pregnancy

Mahajan v Burgess Rawson & Associates Pty Ltd (2017)

- Woman received comp for unlawful termination after real estate firm sacked her after she applied for maternity leave — in some cases, law **provides remedies** for unlawful termination

'Discrimination law fails pregnant women who lose their job' (The Conversation - 2016)